

Saltmarsh Environmental Partners LLC

www.saltmarshenv.com

January 22, 2019

Heather Smith
Chief Financial Officer
Carter and Sons

Dear Ms. Smith,

This letter sets out the terms on which Saltmarsh Environmental Partners will carry out the habitat restoration monitoring we discussed for Carter and Sons, and it asks you to countersign so that a signed copy is in the file before the first field visit. I have kept the language plain. The clauses toward the end read as standard terms because they are, and each is here because it has earned a place on work of this kind.

The restoration area you established under your permit has to be monitored on the schedule the permit sets, and measured against the success criteria the permit names. This engagement covers one monitoring season of that program. It includes the field data collection, the analysis of what we find, and a written monitoring report addressed to the agency reviewer who will read it. We will monitor the vegetation, the hydrology, and the presence of invasive species across the restoration area, at the sample plots and along the fixed transects the monitoring plan lays out.

Our method follows the monitoring plan approved for the site. We hold to it from one visit to the next, so this season's data read against the seasons before and after it. Vegetation is recorded along the fixed transects and in the sample plots, by species and by cover. Hydrology is read at the established gauges. Photographs are taken from the same photo stations and on the same headings, so the panels line up over the years. Every observation is tied to its plot, its station, and the date it was made. William Schwartz runs the field visits and keeps the field record, and on a monitoring program that record is as much a deliverable as the numbers are.

The season's data are compiled into a workbook, each figure carried back to the plot and the date behind it. I check the totals in that workbook against the field record myself before the report is drafted. James Henderson writes the monitoring report from the checked data. It states what was measured, where, and on what date, and it compares the season's results against the permit's success criteria without

reaching past what the data support. Where a criterion has not been met, the report says so and notes what the record shows. We do not present a shortfall as a success, and we do not read more into one good season than the data will bear.

You will have three things from the season: the monitoring report, the data workbook that stands behind it, and the field record for every visit. The report is the document that goes to the agency. The workbook and the field record are what let anyone, including a reviewer years from now, check the report against what was actually done on the ground. We keep copies of all three, and all three are yours.

You will deal mostly with two of our people. William Schwartz, our Field Technician, runs the monitoring visits, the transects, and the photo stations, and works to the tide and the season rather than the office calendar. James Henderson, our Environmental Scientist, handles the desk work and writes the monitoring report for the agency. I sign what leaves this office and review the workbook before anything is submitted, so my name is on the report alongside theirs.

Because the estuary is tidal, the visits are planned around the water and the season, not to fixed dates, so that each reading is clean and comparable with the last. That can move a visit by a day or two. When it does, William will let your site contact know in advance. It changes neither the fee nor the method, which hold from the first visit to the last.

The fee for this season's monitoring is a fixed \$118,500. It covers the field collection, the data workbook, the analysis, and the monitoring report as described above. It does not cover work outside that scope. If the site turns up something that calls for more than this letter describes, I will tell you before we do it and not after. We are prepared to begin on February 1, 2019, subject to site access and to conditions on the estuary.

Fees and Payment

The fixed fee is invoiced in two parts: half when the work commences and the balance on delivery of the monitoring report. Invoices are due within thirty days. Anything you ask us to add beyond the scope above is billed at cost, and only after you have approved it in writing.

Term and Termination

The engagement runs from commencement until the monitoring report is delivered and accepted. Either of us may end it on fifteen days' written notice. If you end it partway through, you owe us for the fieldwork completed and for any commitments

already made to that point, and we will hand over the field record and the data we hold so that the season's work is not lost.

Confidentiality

We treat your site information, your business information, and the terms of this engagement as confidential, and we do not discuss them outside the firm without your consent. The monitoring report is the exception the permit requires, since it is submitted to the agency, along with any disclosure the law compels. Where we are required to disclose, we will tell you what is going and to whom, so far as we are allowed to.

Limitation of Liability

Our findings rest on the conditions present at the sample plots on the days they were monitored, and a restoration area changes from season to season and across its own ground. Our liability for this engagement is limited to the amount of the fee, and we are not responsible for decisions made on the basis of the report beyond what its data support. That limit reflects what one season of monitoring can establish, and no more.

Governing Law

This agreement is governed by the law of the state in which the site sits, and any dispute under it will be settled there.

If these terms match your understanding, please sign below and return one copy to me for the file, keeping the other for yours. If anything reads differently from what we discussed, call me before you sign and we will settle it first. I am glad to be taking this on, and I expect the record this season produces to stand up to the reading the agency will give it.

Angela Flynn

Managing Principal

Date: January 22, 2019

Heather Smith

Chief Financial Officer, Carter and Sons

Date: January 22, 2019